

# The Rules We Live By



Palm Royal Apartments, Inc.  
*A Condominium Community*  
36 S.E. 13th Street  
Boca Raton, FL 33432

2017

# PREFACE

Palm Royal Apartments is an Adult Community of one hundred eleven units. We, as individual unit owners, have a common interest in what happens around us, as far as the condominium as a whole is concerned. It is important to have a set of rules and regulations to govern and guide us as we strive to make this venture run smoothly.

The rules, which appear in this booklet, have been established and adopted to provide a set of guidelines for maintaining high standards, pleasant living conditions for the common welfare and best interests of all the residents of Palm Royal Apartments, Inc. and their guests. Compliance by all of us is essential for the successful operation of our condominium association.

The rules have been revised and updated as time and circumstances dictated.

# THE RULES WE LIVE BY

## A. OWNERS RESPONSIBILITIES

1. Owners should become familiar with the Declaration of Condominium, Articles of Incorporation, By-Laws, all the Amendments to these legal documents, and the Supplemental Agreements covering individual apartments as well as the **Rules We Live By** booklet.
2. Maintenance fees are due and payable the first of each month and are to be **RECEIVED** within the **FIRST TEN CALENDAR DAYS** of each month. If payment is not received, a late fee of \$25.00 will be assessed for each late payment as required by Section 8, Article VII of our Bylaws. In addition, an interest charge of 1-1/2 percent per month, (18%) APR may be added at the discretion of the Board of Directors. Extended delinquencies will be pursued and prosecuted on a legal basis.
3. Guests, other than "immediate family" are permitted only when an owner is in residence. Members of the owners "immediate family" may occupy the unit without the owner being present. "Immediate family" members may visit for up to 90 days in any 12 month period and guests who are not "immediate family" may visit for up to 30 days in any 12 month period. "Immediate family" shall be deemed to include spouses, parents, parents-in-law, brothers, sisters, children, grandchildren, and great grandchildren (see D.O.C XIV, A page 29).
4. In the absence of an owner or a member of his immediate family, no apartment shall be occupied by any person not approved in advance by the Board of Directors of the Association. In no instance are there to be guests under age 18 unaccompanied by an adult.

5. Owners are required to assure all overnight guests are registered in the "Guests Book" provided in the clubhouse, completing all the information. It is the owner's responsibility to see that guests abide by **The Rules We Live By**. Extra copies of **The Rules We Live By** will be available on the Clubhouse desk.

6. Owners are responsible for the conduct of their guests within the condominium property and shall familiarize their house guests with these rules and regulations.

7. The Articles of Condominium as amended do not permit permanent residence of children younger than 18 years of age.

8. It is the responsibility of the apartment owner to paint, maintain, replace, repair the exterior doors, windows and screens. The exterior portion of the doors should be painted with permanent white paint. The aluminum window frames should be cleaned, not painted. Patio and window screens must be replaced as needed. The association will give proper notification if repairs/replacements are necessary. If not acted upon by the unit owner in a timely fashion, appropriate action will then be taken by the Architectural Committee.

9. Any unit owner planning on installing new doors, storm shutters, or window enclosures **must** have them approved by the Architectural Committee prior to installation with regard to type, style, size, material, and color. Applications are available in the office.

10. No unit owner shall cause improvements or changes to the exterior of the condominium, including but not limited to walls, fencing, screening, painting, or other decoration of any aesthetic nature, installing electrical wiring or air conditioning units which may protrude through the walls or roof of the Condominium property or in any manner change the appearance of any portion of the buildings or the common area from that as originally provided **without prior written consent of the Architectural Committee** in accordance with the official documents.

11. When a unit owner has any remodeling work done, the owner is reminded that the debris from such remodeling, i.e., sinks, stoves, refrigerators, tile, carpeting, furniture, etc., **cannot be placed in the dumpster or in the dumpster vicinity.** Such debris must be removed by the contractor/installer/service person or taken directly to the solid waste Authority, Delray transfer station, Linton Avenue and Dixie Highway (phone 1-866-792-4636).

12. Unit owners shall be liable for damages to the Condominium Property caused by receiving deliveries or moving out or removing furniture or other articles to or from their respective Condominium Units.

13. Anything for the Board's attention should be presented in writing to the Board and placed in the Office mailbox.

## **B. DRIVING ON PALM ROYAL PREMISES**

1. The speed limit is ten (10) m.p.h. It is important for the safety of all that these speeds be observed.

2. One-way traffic signs have been posted to facilitate the safe flow of traffic. It is imperative that they be observed. Backing against the flow of traffic is never permissible. **A complete stop is required at all stop signs.**

3. Bicycling or handicapped motor vehicles are permitted only if all normal traffic rules are obeyed and the ten (10) M.P.H. speed limit is obeyed.

4. Roller skating, roller blading and skate boarding are prohibited within Palm Royal premises.

5. Any accident occurring on Palm Royal property must be reported to the appropriate authorities.

## C. PARKING

1. Parking in the roadways should be confined to emergency conditions or not more than **20 minutes** while unloading the car.

2. No commercial vehicles, campers, trailers, motorcycles, mopeds, trucks, boats or motor homes may be parked in Palm Royal parking spaces. Owners and guests with said vehicles are granted a grace period of two weeks, or longer with written permission, in the 14th St. parking area. All vehicles parking on Palm Royal property must bear current registration and unit owners must display a Palm Royal association numbered sticker on the rear window of vehicles that is readily visible. Only vehicles registered or leased to unit owners may be parked on a continuing basis on this property.

3. No vehicle which cannot operate on its own power shall remain within the condominium property for more than 24 hours, and no repair of vehicles shall be made within the Condominium property, other than for purposes of charging a battery or changing a tire.

4. Vehicle ID enhances the overall control and security of parking facilities. A Palm Royal decal is required for all residents' vehicles and may be obtained in the office.

5. Overnight guests must register vehicles in clubhouse and display overnight parking permit in rear window. Permits are available at guest registry in the clubhouse.

6. There is a limited number of guest parking spaces. Owners are to use only their reserved space. Owners with a second vehicle may, with written agreement, use another owner's unused space. The owner of the reserved space must notify the office in writing of such agreement. If such an agreement is not feasible, the second vehicle **must** then be parked in the 14th St. parking lot.

7. Due to the limited number of guest parking spaces available, guest staying longer than three (3) days should use the 14th St. parking lot. Residents with a second vehicle shall be accommodated on an individual basis by permission of the Board of Directors.

8. Emergency and Service vehicles require maximum clearance of our roadways, requiring vehicles to be parked within the painted lines and pulled forward close to the bumpers. No parking is permitted within the driving lanes or in such a manner as to impede access to another space. No vehicle shall be backed into a parking space. All vehicles must be parked in forward position only.

9. The Board of Directors reserves the legal right to have any illegally parked vehicle removed at the vehicle owner's expense.

## **D. COMMON ELEMENTS OF INDIVIDUAL BUILDINGS**

1. The common elements, i.e., walkways, space beneath the stairs, alcoves and stair landings, belong to the Association, NOT the unit owner. Occupants are not to store items in these areas. The Fire Department rules stipulate adequate space must be maintained for proper access to every unit. It is therefore imperative that these areas remain free and clear at all times.

2. Bulletin Boards are provided near the mailboxes of each building and in the clubhouse for official and appropriate notices.

## **E. USE OF THE CLUBHOUSE**

1. Our facilities are for the exclusive use of Palm Royal Owners or registered house guests, and guests accompanied by an Owner. In general, the clubhouse may be regarded as an extension of the owner's living room and may be used for the entertainment of personal guests.

2. To avoid conflicts, use of the clubhouse should be scheduled by indicating the date and time on the clubhouse calendar.

3. The items in the clubhouse, other than the library books, are part of the common elements of the condominium and are not to be removed unless permission is granted by an officer of the Board of Directors.

4. When the clubhouse is used it should be restored to its prior condition before leaving, and tables and chairs returned to the storage area. Under no circumstances should any food, decorations, or similar items be left in the clubhouse.

5. Neither bare feet nor wet bathing attire are permitted in the clubhouse. The clubhouse is not to be used as an entrance or exit from the pool or the pool area. The proper entrance and exit is through the pool gates only.

6. Use of the clubhouse for any purpose other than noted in Item 1 must have approval of the Board of Directors.

7. No permission will be given for commercial use of the facility.

## **F. GARBAGE AND NEWSPAPER DISPOSAL**

1. There are presently dumpsters in each quadrant of our property. Additional dumpsters and /or containers may be added as needed to accommodate changing environmental laws. Trash and garbage should be securely sealed and placed in dumpsters. All newspapers and flattened boxes must be put in the yellow recycling container, glass, metal and plastic go in the blue recycling container. **No trash of any kind is to be placed outside of the dumpsters. (See A.12)**

2. In order to minimize sewage blockage in the building pipes, discretion should be used when placing items in the garbage disposals. Plastic bags, fibrous materials such as banana peels, corn husks, onion peels, etc. are not to be placed in the disposal. Owners are reminded to read the manufacturer's instructions carefully and to **allow water to run generously** when using the disposal. **Wipes of any type must not be flushed including "flushable wipes" as they do not dissolve. Dispose of them properly in the trash to prevent sewer blockages.**

## **G. USE OF APARTMENT... See Declaration, Article XIV as Amended**

1. Apartments are to be used as residences and may not be used as business or commercial offices.
2. Owners are responsible for any damage to the Condominium Property caused by them, their guests or by others performing services on their behalf.
3. Residency of a unit is restricted to a single family, all over the age of 18. One Owner must be at least 55 years old.
4. Florida Condominium Act mandates that duplicate keys must be kept in the lockbox in the Association office. In the event of an emergency the Association must have access to each apartment. There have been instances where people have accidentally locked themselves out, water leaks have occurred with no one in residence and cases of sudden death. Without the availability of keys, forced entry becomes necessary, resulting in costly repairs to the owner(s).
5. State Fire Laws prohibit barbecuing inside or outside each and every building. Activities of such nature must be conducted in the area adjacent to the pool.
6. No pets, with the exception of guide dogs, will be permitted. Owners requesting an Emotional Support Animal (ESA) will be required to submit a written application to the Board of Directors prior to any screening for ownership.
7. No occupant shall allow the front entrance door of his or her Condominium Unit to remain open for any purpose other than immediate ingress and egress.

8. Unnecessary noise caused by television, radio, stereos, loud singing or music practice, doors, parties, etc. is to be avoided at all times and will not be tolerated especially between the hours of 11 P.M. and 8 A.M.

9. The laundry equipment is to be used only between the hours of 8 A.M. and 9 P.M.

10. Repair work which creates nuisance noise must be done in the Condominium workshop. Condominium-owned tools are available to all owners. However, any borrowed tool must be returned and accounted for each working day.

11. Any work requiring the use of tools such as drills, hammers, etc. are to be confined to the hours between 9:00 A.M. and 5:00 P.M. Monday through Saturday.

12. Prior to any hard-surface tile, hardwood or laminate installation, the unit owner **MUST** notify the Condominium Association to insure that proper sound-deadening control underlayment (seal, cork, or its equivalent) will be used. Floor coverings must be in accordance with current local code and specifications.

13. Unit Owners when not present must arrange for someone to inspect their units on a regular basis. **The unit is the responsibility of the owner.**

## **H. SALE OR LEASE OF APARTMENTS... See Declaration, Article XV as Amended**

1. Palm Royal is an attractive residence, and there are frequent inquiries about possible vacancies. **The Board MUST be notified when a sale or lease is anticipated, in accordance with our official documents.**

2. Condominium sales will be approved only to those who plan to use the apartment for residential purposes. Palm Royal Premises may not be used for business or commercial purposes.

3. A copy of **The Rules We Live By** must be provided to a prospective purchaser by the seller or Real Estate agent prior to the interview by the screening committee.

4. The seller must furnish the buyer with:

- A. The original Declaration of Condominium and all the Amendments
- B. Articles of Incorporation
- C. The Bylaws
- D. Rules We Live By booklet
- E. A copy of “Frequently Asked Questions and Answers”
- F. An up-to-date packet containing the above may be purchased from the Association or the management company
- G. Clubhouse and Gate keys

**5. Purchaser is responsible for fee(s) to obtain and furnish the Association with a credit and criminal record report prior to purchase through the Management Company. All purchasers must be screened and approved by the Screening Committee prior to purchase. All renters must be interviewed upon arrival at the Palm Royal Office.**

6. Restrictions on leasing: No apartment may be leased until after the expiration of 24 months from the date the new owner acquires title to the unit. No lease may be longer than 6 months in a 12 month period. A unit may only be leased once in a 12 month period for a maximum of 6 months.

## I. RULES GOVERNING USE OF THE POOL

*State and County Health Regulations are posted at the pool in compliance with legal requirements. These rules must be followed explicitly. Failure on the part of the Condominium to require compliance could result in the closing of the pool by the Health Department. Apartment owners are responsible for the conduct of their guests at the pool.*

*The following special rules are designed to aid everyone in enjoying the use of Palm Royal's swimming pool.*

1. Shower before entering the pool.
2. Please put a towel on your chair or lounge when lotion is used. The oil rots webbing and also soils clothing.
3. EVERYONE MUST WEAR FOOTWEAR, SHIRTS, AND/OR COVER-UPS COMING TO AND FROM THE SWIMMING POOL. THIS SAME RULE OF DECORUM IS APPLICABLE AS WELL ANYWHERE ON THE PREMISES, REGARDLESS OF ACTIVITY.
4. Please keep pool and surrounding area clean.
5. No food in pool area. Please use the area provided for this purpose just outside the pool fence. Unbreakable beverage containers are permitted in the pool area.
6. No diving. Swim at your own risk.
7. Our insurance carrier does not permit children under age of 12 years in pool without adult supervision.
8. Pool hours are from dawn until dusk.
9. Absolutely **NO SMOKING** within the pool area

## **J. INFRINGEMENT OF THE RULES:**

1. Any infringement of the rules and regulations of Palm Royal Apartments should be brought to the attention of the office, the Board of Directors, or the Property Management Company.
2. "No Unit Owner may act on behalf of the Association simply by reason of being an owner." 718.111 (1)(C)

**~Notes~**

## **K. SANCTIONS AGAINST VIOLATIONS**

*A Community Association must have rules, laws and regulations to create a harmonious atmosphere for its residents. These sanctions are adopted for those who violate the established rules. The Board of Directors, under the Declaration of Condominium, has the authority to enforce these rules and regulations and to take action against violators.*

*The procedure shall be as follows:*

1. Written notice will be sent that a violation has occurred. Compliance is expected within 30 days of notice. Failure to comply will result in a fine. Condominium Act 718.303 (3).
2. The party against whom the fine is levied shall be afforded the opportunity of a hearing within 14 days of receiving notice.
- 3 The party against whom the fine is / may be levied, shall have the opportunity to respond, present evidence, and to provide argument on all issues involved regarding the violation.
4. The hearing will be held before a panel of three unit owners who are not members of the Board of Directors. The decision of the panel will be final.
5. Assessments will begin the day following an affirmative vote by a majority of the panel.